



CHAPTER lxxxiii.

An Act to make new provisions as to the charges to be made by the Chester United Gas Company and as to the application of the profits of the Company and for other purposes. A.D. 1922.
[4th August 1922.]

WHEREAS by the Chester Gas Act 1858 the Chester United Gas Company (hereinafter called "the Company") were incorporated and were authorised to manufacture and supply gas within certain parishes and places in the counties of Chester and Flint :

And whereas by the Chester Gas Act 1870 the Chester Gas Act 1880 and the Chester Gas Act 1901 further powers were conferred upon the Company and by the last-mentioned Act the ordinary capital of the Company was consolidated and converted into one class of ordinary stock bearing a uniform dividend at the rate of five pounds per centum per annum and the preference capital of the Company was converted into one class of preference stock bearing a dividend at the rate of four pounds per centum per annum :

And whereas by the Chester United Gas Company (Capital Issues) Consent 1921 the Board of Trade acting under the Public Utility Companies (Capital Issues) Act 1920 consented (inter alia) to the creation and issue by the Company of redeemable preference and redeemable debenture stock and to the creation and issue of debenture stock and to the borrowing of money by the Company to an extent not exceeding one-half of the capital for the same being issued and paid up and to the payment of

A.D. 1922. a higher rate of dividend on preference stock authorised by the special Acts of the Company

And whereas by the Chester Gas (Charges) Order made by the Board of Trade under and by virtue of the Gas Regulation Act 1920 there were substituted for the maximum prices authorised by the said Act of 1858 a maximum price of sixteenpence per therm for gas supplied by the Company within the city of Chester and a maximum price of seventeen decimal two pence per therm for gas supplied by the Company elsewhere within their limits of supply :

And whereas it is expedient that there should be substituted for the present provisions regulating the dividends payable on the ordinary capital of the Company provisions whereby such capital should receive by way of dividend a reasonable return at a fixed rate and any surplus profits should after providing for a further return on such capital and bonus to employee co-partners of the Company be applied in reduction of the price of gas with the object of securing that the consumers and employees of the Company as well as the shareholders should have a direct and substantial interest in the reduction of the price of gas and in the development and improvement of the undertaking :

And whereas it is expedient that such other powers should be conferred on the Company and such other provisions should be made as in this Act are hereinafter set forth :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Chester Gas Act 1922 and the Chester Gas Act 1858 the Chester Gas Act 1870 the Chester Gas Act 1880 the Chester Gas Act 1907 and this Act may be cited together as the Chester G

[12 & 13 GEO. 5.] *Chester Gas Act, 1922.* [Ch. lxxxiii.]

Acts 1858 to 1922 and each of those Acts is hereinafter referred to separately as the Act of the year in which the same was passed. A.D. 1922.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely) :— Incorporation of general Acts.

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words “ or any premises ” were inserted after the words “ private building ” and as if the words “ Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers ” were added at the end of that section :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the provision to be made for affording access to the special Act by all parties interested.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And— Interpretation.

“ The Company ” means the Chester United Gas Company ;

“ The directors ” means the directors of the Company ;

“ The undertaking ” means the undertaking for the time being of the Company ;

“ The limits of supply ” means the limits for the time being of the Company for the supply of gas.

PRICE OF GAS AND APPLICATION OF PROFITS.

4. Subject to the provisions of this Act as from the first quarter day next after the passing of this Act the price charged by the Company for gas supplied by them to ordinary consumers within the limits comprising the city and borough of Chester and any other area being within a radius of two and a-half miles measured from the existing gasworks of the Company at the Roodee Chester (which said limits are hereinafter called “ the Basic price of gas.

A.D. 1922. — inner area ") shall be ten decimal four pence per therm which price is in this Act called " the basic price " and the price charged by the Company for gas supplied by them to ordinary consumers in any other place within the limits of supply (which other places are in this Act referred to as " the outer area ") shall not exceed the price for the time being charged by the Company for a like supply of gas to ordinary consumers in the inner area by more than the sum of one decimal two pence per therm.

Basic rates
of dividend.

5. The Company may subject to and in accordance with the provisions of this Act increase or reduce the price charged by them above or below the basic price but except as by this Act is otherwise provided the Company shall not in any one year declare or pay any larger dividends on the ordinary capital of the Company than a dividend at the rate of five pounds per centum per annum in respect of every one hundred pounds of such capital issued before the passing of this Act and for the time being paid up and a dividend at the rate of seven pounds and ten shillings per centum per annum in respect of every one hundred pounds of ordinary capital issued after the passing of this Act and for the time being paid up and the said rates of dividend are in this Act referred to as " the basic rates of dividend."

If in any year the amount applicable to dividend is insufficient to pay dividends for such year on the ordinary capital of the Company at the basic rates of dividend the dividends for such year on each of the classes of the ordinary capital of the Company shall be at rates which bear the same proportion to one another as the basic rates of dividends on such classes of capital bear to one another.

Any balance of the profits of the Company remaining after paying the dividends on any preference capital of the Company and dividends at the authorised rates of dividend on the ordinary capital of the Company and after making the appropriations authorised by the section of this Act whereof the marginal note is " Division of surplus profits " shall be carried to the credit of the net revenue account of the Company for the next following year Provided that the sum standing to the credit of such net revenue account shall not at any time exceed the amount required to pay one year's dividend on the preference capital and one year's dividend at the basic rates of dividend on the ordinary capital of the Company.

6.—(1) If in any year the selling price of gas shall have been below the basic price then if and so far as the amount standing to the credit of the net revenue account after providing for dividend on the preference capital and dividend on the ordinary capital of the Company at the basic rates of dividend in the opinion of the directors permits an amount equal in the whole to one-third of the sum representing the difference between the amount the Company have received in that year and the amount they would have received in such year if gas had been sold by them in the inner area at the basic price and in the outer area at a price not exceeding the basic price by more than the amount (if any) by which the selling price in the outer area shall in such year have exceeded the selling price in the inner area shall be applied in such proportions as the Company shall resolve at the annual general meeting of the Company held next after the end of such year for the benefit of the holders of the ordinary capital of the Company and for the benefit of the employee co-partners of the Company in manner hereinafter mentioned. Provided always that the amount to be so applied in respect of any such year for the benefit of the employee co-partners of the Company shall not be less than the amount so applied in respect of the same year for the benefit of the holders of such ordinary capital.

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Division of
surplus
profits.

(2) Any sum so to be applied for the benefit of the holders of ordinary capital may be applied in the increase of the dividends on such capital above the basic rates of dividend in proportion to the nominal amounts of such capital held by such holders respectively and if and so far as not so applied shall be carried to the reserve fund provided for by this Act.

(3) All sums so to be applied for the benefit of the employee co-partners of the Company shall be carried to the benefit fund of the Company or a co-partnership fund to be established under the provisions of the section of this Act of which the marginal note is "Co-partnership scheme". The moneys so carried to the co-partnership fund shall be allocated by way of an uniform percentage of bonus on the salaries and wages of the employee co-partners of the Company.

(4) The sum (if any) representing the difference between the amount the Company have received in any year and the amount they would have received in such

A.D. 1922. — year if gas had been sold by them in the inner area at the basic price and in the outer area at a price not exceeding the basic price by more than the amount (if any) by which the selling price in the outer area shall in such year have exceeded the selling price in the inner area shall be stated in the accounts of the Company for that year and certified by an auditor being a member of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant approved by the Board of Trade.

Prepay-
ment meter
charges. 7.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the number of therms supplied and the maximum charge shall be two decimal four pence per therm if a cooking stove is included and twopence per therm if a cooking stove is not included.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the number of therms supplied (when the maximum rate of charge shall be one decimal two pence per therm) or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connection therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Revision of
basic price. 8. If at any time after the thirty-first day of December one thousand nine hundred and twenty-five it is shown to the satisfaction of the Board of Trade that the costs and charges of and incidental to the production and supply of gas have substantially altered from circumstances beyond the control of or which could not reasonably have been avoided by the Company the

Board may if they think fit on the application of the Company or of the local authority make an amending order correspondingly revising the basic price under section 1 of the Gas Regulation Act 1920 on the like conditions and in the like manner as those on and in which such price could be revised if it had been originally fixed by an order made under that section and on the making of any such order this Act shall have effect as if the basic price fixed by such order were substituted for the basic price prescribed by this Act.

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HOLDINGS OF STOCK—INTERIM DIVIDENDS—CLOSING OF TRANSFER BOOKS.

9.—(1) Any ordinary stock preference stock or debenture stock of the Company may be issued and be held in amounts of ten pounds or of any multiple of ten pounds and not otherwise and the Company shall not be under any obligation to register a transfer of any such stock which would reduce the holding of stock of that class of the transferor below or make the holding of stock of that class of the transferee less than ten pounds or a multiple of ten pounds.

Minimum
holdings of
stock.

(2) Notice of this enactment so far as applicable shall be stated in all certificates of ordinary stock preference stock or debenture stock of the Company as the case may be.

10. The directors may in any year declare and pay an interim half-yearly dividend on any class or classes of stock in the capital of the Company out of the profits of the Company without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one-half of the amount of the authorised rate of dividend payable on such stock.

Interim
dividends.

11. The directors may close the register of transfers of ordinary or preference capital of the Company for a period not exceeding fourteen days previous to the declaration of any interim dividend on such ordinary or preference capital and may close the register of transfers of debentures or debenture stock of the Company for a period not exceeding fourteen days previously to the payment of any interest on such debentures or debenture stock and the directors may in any such case fix a day for the closing of any register which they are authorised to

Closing of
transfer
books.

A.D. 1922. — close under the provisions of this section Seven days' notice of the closing of any such register shall be given by advertisement in some newspaper published or circulating within the limits of supply or within the district in which the principal office of the Company is situate and any transfer of any ordinary or preference capital lodged for registration with the Company while the transfer books relating to such ordinary or preference capital are so closed and any transfer of any debentures or debenture stock lodged for registration with the Company while the transfer books relating to such debentures or debenture stock are so closed shall as between the Company and the person claiming under any such transfer but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

RESERVE AND SPECIAL PURPOSES FUNDS.

Reserve
fund.

12.—(1) Any moneys which the Company are by this Act authorised to carry to the reserve fund may be invested in any securities in which trustees are authorised by law to invest money or in such other manner as shall be authorised by a resolution of the Company and the dividends and interest arising from such securities may be invested in the same or the like securities in order that the same shall accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable in or towards the payment of dividends on the ordinary capital of the Company for any year in which the profits of the Company shall be insufficient to enable the Company to pay dividends at the authorised rates on such capital or to such other purpose or purposes as the directors may determine.

(2) The moneys and securities standing to the credit of the reserve fund of the Company existing at the passing of this Act shall to the value of five thousand pounds be credited to the reserve fund provided for by this Act and save as is by this Act provided no sum shall in any year be carried by the Company to a reserve fund.

Special
purposes
fund.

13.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the

paid-up capital of the Company (including premiums) to a fund to be called "the special purposes fund." A.D. 1922.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

- (a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or
- (b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for ordinary maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The moneys or securities standing to credit of the reserve fund of the Company existing at the passing of this Act (save as to the part thereof of the value of five thousand pounds which is to be credited to the reserve fund as mentioned in this Act) and the moneys and securities (if any) standing to the credit of the contingency fund of the Company shall be credited to the special purposes fund and section 122 of the Companies Clauses Consolidation Act 1845 shall cease to apply to the Company.

(7) For the purposes of this section "the paid up capital of the Company (including premiums)" means the sum of one hundred and forty-eight thousand eight hundred and seventy-three pounds being the moneys which have been received by the Company on the issue of ordinary and preference shares or stock already issued

A.D. 1922. — by them and the moneys which shall at any time hereafter have been actually received by the Company in respect of any ordinary or preference shares or stock hereafter issued by the Company and for the time being outstanding.

MEETINGS—VOTINGS—DIRECTORS—AUDITORS &C.

Annual
general
meeting.

14. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 or in any Act relating to the Company the ordinary general meeting of the Company shall be held in each year in the month of February or March or at such other times as the directors may from time to time appoint and it shall not be obligatory on the Company to hold half-yearly general meetings or to balance their accounts or make up a balance sheet half-yearly.

Quorum of
general
meetings.

15. The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be seven stockholders present in person or by proxy holding in the aggregate not less than one-twentieth of the issued capital of the Company.

As to
appoint-
ment of
proxies.

16. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary of the Company at the same time as or before the instrument appointing the proxy.

Joint
holders.

17. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock any one of those persons may vote at any meeting either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors

or administrators of a deceased member in whose name any shares or stock stands shall for the purposes of this section be deemed joint holders thereof. A.D. 1922.

18.—(1) For the purpose of allowing the Company to elect any chief engineer general manager or secretary of the Company who has retired or is about to retire to be a director of the Company the number of directors prescribed by section 45 of the Act of 1858 may at any time be deemed to be increased by one and if such number is so increased the increase shall be deemed to remain in force so long as any such chief engineer general manager or secretary who has been appointed a director by virtue of the provisions of this section is in office as such a director but no longer. Provided that in no event shall there be at the same time more than one such person holding office as a director by virtue of the provisions of this section. Directors.

(2) The foregoing provisions of this section shall extend to allow the election by the directors of any such person as is mentioned therein to be a director for any period expiring at the date of the annual general meeting of the Company which shall take place next after such election by the directors.

19. No person not being a retiring director of the Company shall be eligible to be elected a director of the Company at any general meeting unless notice in writing is given to the secretary of the Company or left at the principal office of the Company fourteen days at least before the day of election that such person will be proposed for election as a director of the Company and the secretary of the Company shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office. No person shall be eligible to be elected a director at any general meeting of the Company unless he shall have been the holder of the qualifying amount of shares or stock for at least three months prior to his election. In the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner. Notice of candidature of or of opposition to re-election of director.

20.—(1) The directors may appoint any one of their body to be a managing director of the Company either for a fixed term or without any limitation as to As to appointment of

A.D. 1922.

managing
director.

time and may remove or dismiss him from office and appoint another in his place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by all or any of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Directors
holding
office under
or con-
tracting
with
Company.

21. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract :

Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

Directors
may deter-
mine re-
muneration
of secretary
&c.

22. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors of the Company.

PROVISIONS AS TO SUPPLY OF GAS.

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23. Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where the capacity of such main is insufficient for such purpose or if and so long as any such supply would in the opinion of the Company interfere with the supply of gas for lighting or domestic purposes.

Amending obligations as to supply of gas.

24.—(1) In any case in which the Company are by virtue of any enactment relating to the undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall re-connect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1871 :

As to mode of cutting off supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

25. In any case in which in consequence of any default on the part of the occupier of any premises the Company have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of re-connecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Expenses of reconnecting discontinued supply.

26. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises used for trade or business purposes for which he has at the same time a separate supply of

As to premises using electricity or other gas.

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A.D. 1922. electricity or gas for power or other purposes the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by the Company not exceeding twenty shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises.

Fittings on hire to remain property of Company.

27. All engines fittings apparatus and appliances (in this section referred to as "fittings") let by the Company on hire or under hire-purchase agreements under any statutory powers shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof. Provided also that nothing in this section shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

Removal of fittings where gas supply discontinued.

28. The power to enter premises and to remove pipes meters and fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company.

Power to refuse supply to persons in debt for other premises.

29. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Supply in bulk.

30. The Company may contract with any local authority company or persons for the supply by the Company to them or for the supply to the Company by them of gas in bulk upon such terms and conditions

as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply. A.D. 1922.

31. Notwithstanding anything contained in any Act relating to the Company the price to be charged by the Company for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Company and the person taking such supply. Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances and conditions. Power to vary price according to purpose for which gas is supplied.

PROFIT SHARING.

32.—(1) The directors may with the sanction of the majority of the proprietors of the Company present in person or by proxy and voting at a general or an extraordinary general meeting of the Company prepare put in force and from time to time modify alter or rescind a scheme or schemes enabling the employees of the Company or any class or classes of such employees as may be defined in such scheme or schemes to participate in the profits of the undertaking. Co-partnership scheme.

(2) Notwithstanding anything contained in any Act relating to the Company the Company may if and whenever required by any persons being the trustees under any such scheme so to do issue to any employee of the Company such amount of ordinary stock as the trustees may specify (being in each case within the limit of the amount of ordinary stock which the Company may for the time being be authorised to issue) without first offering such stock for sale by public auction or tender. Provided that any ordinary stock issued under the provisions of this section shall be issued at the average price at which according to the Company's books sales of ordinary stock were effected within the period of six months immediately preceding the issue or if there has been only one sale or no sale of ordinary stock within the said period then at the price at which the last sale of such stock was effected making due allowance in each case for any enhancement in price by reason of any accrued dividend. The price at which such stock is to be issued shall be determined by the said trustees in accordance with the provisions of this subsection.

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(3) A co-partnership fund shall be provided for by the co-partnership scheme established under the provisions of this section and the Company shall carry to the credit of such co-partnership fund any moneys which are at the date of the passing of this Act standing to the credit of the benefit fund of the Company.

MISCELLANEOUS.

Power to
grant pen-
sions &c.

33. The directors may grant pensions and retiring or superannuation allowances to officers and servants of the Company and for that purpose may apply the funds and revenues of the Company.

Authentica-
tion and
service of
notices by
Company.

34. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Several
sums in one
summons.

35. Where the payment of more than one sum by any person is due under any provisions of any Act or order for the time being relating to the Company any summons or warrant issued for the purposes of those Acts or orders in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Recovery of
demands.

36. Proceedings for the recovery of any demands made under the authority of any provisions of any Act

or order for the time being relating to the Company or any enactment incorporated with any of those Acts or orders whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. A.D. 1922.
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37. Save as otherwise by this Act expressly provided all offences against any provisions of any Act or order for the time being relating to the Company and all penalties forfeitures costs and expenses imposed or recoverable thereunder or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of
penalties &c

38.—(1) Nothing in this Act shall exempt the Company or the undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament. Saving for
general
Acts.

(2) Nothing in this Act shall prevent the application to the Company of any general Act already passed or which may be passed in the present or any future session of Parliament relating to the raising of capital by companies carrying on statutory undertakings.

39.—(1) The following provisions of the Act of 1858 the Act of 1880 and the Act of 1901 are hereby repealed as from the passing of this Act:— Repeal.

The Act of 1858—

Section 40 (General meetings);

Section 41 (Quorum of meetings);

Section 59 (Regulating supply of gas and price
for public and other lamps);

Section 61 (Company to light lamps on city gates
gratis);

Section 62 (Register of gas meter to be prima
facie evidence);

Section 63 (Gas to be consumed by meter when
required by the Company);

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- Section 64 (Penalty for tampering with meters);
- Section 68 (Company may remove pipes from unoccupied premises on giving notice to owner);
- Section 70 (Penalties not cumulative);
- Section 71 (Quality of Company's gas);
- Section 75 (Sums undisputed may be recovered by distress);
- Section 76 (Contents of warrants);
- Section 77 (Warrants shall include costs);
- Section 78 (Recovery of sums due to Company);
- Section 79 (Liability to gas rate not to disqualify justices);
- Schedule (A) :

The Act of 1880—

- Section 14 (Limitation of contingency fund under Companies Clauses Act 1845);
- Section 26 (Company to hold two ordinary general meetings annually);
- Section 29 (Pressure of gas):

The Act of 1901—

- Section 17 (Stock to be transferable in multiples of ten pounds);
- Section 20 (Profits of Company limited) except so far as it relates to preference stock;
- Section 39 (Power to refuse supply to persons in debt for other premises).

(2) The following provisions of the Act of 1858 and the Act of 1880 are hereby repealed as from the quarter day next after the passing of this Act :—

The Act of 1858—

- Section 58 (Limiting the price of gas).

The Act of 1880—

A.D. 1922.

Section 16 (Restrictions on payment of deficiency in back dividends and as to reduction of price of gas in certain events);

Section 18 (Dividends on various classes of stock or shares).

(3) Section 3 (Maximum prices) of the Chester Gas (Charges) Order 1921 is hereby annulled as from the quarter day next after the passing of this Act.

40. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue. Costs of Act.

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FOR

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